

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Erin Sweeney	Team: Squad #08	CCRB Case #: 201502560	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 04/01/2015 5:05 PM	Location of Incident: Liberty Avenue and Hemlock Street	18 Mo. SOL 10/1/2016	Precinct: 75		
Date/Time CV Reported Fri, 04/03/2015 7:55 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 04/03/2015 7:55 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Jean Seder	17886	945720	075 PCT
2. SSA Gary Calhoun	00622	903537	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Kamil Pac	28872	950994	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SSA Gary Calhoun	Discourtesy: Sgt. Gary Calhoun spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POF Jean Seder	Abuse: PO Jean Seder frisked § 87(2)(b)	B . Substantiated
C . SSA Gary Calhoun	Abuse: Sgt. Gary Calhoun frisked § 87(2)(b)	C . Substantiated
D . SSA Gary Calhoun	Abuse: Sgt. Gary Calhoun searched § 87(2)(b)	D . Unsubstantiated
E . POF Jean Seder	Abuse: PO Jean Seder searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	E . Exonerated
F . SSA Gary Calhoun	Abuse: Sgt. Gary Calhoun searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	F . Exonerated

Case Summary

On April 1, 2015, at approximately 5:02 p.m., § 87(2)(b) entered a bodega located at Crescent Street and Glen Street in Brooklyn and purchased one beer. As he exited, he saw his wife, § 87(2)(b) walking on the street, and asked her if she would like a ride to their house. She entered the vehicle, and they turned left onto Crescent Street. Approximately one block after they turned, Sgt. Gary Calhoun and PO Jean Seder of the 75th Precinct SNEU team stopped them in front of Rose's Pharmacy. § 87(2)(b) alleged the following: Sgt. Calhoun spoke discourteously to him (**Allegation A**). The officers asked them to exit the vehicle, and PO Seder frisked § 87(2)(b) (**Allegation B**), while Sgt. Calhoun frisked and searched § 87(2)(b) (**Allegations C and D**). Both Sgt. Calhoun and PO Seder searched their vehicle (**Allegations E and F**). Two straws approximately one inch in length were recovered from the vehicle. PO Seder searched § 87(2)(b)'s purse and recovered a bottle of Xanax pills. § 87(2)(b) was arrested on § 87(2)(a) 160.50

§ 87(2)(b) (Board Review 1). § 87(2)(b) was arrested on charges of criminal possession of a controlled substance in the seventh degree § 87(2)(a) 160.50 (Board Review 2). According to § 87(2)(b) and the ADA assigned to § 87(2)(b)'s criminal case, § 87(2)(b) took a plea, and his arrest was sealed (Board Review 1). § 87(2)(b)'s case went to a grand jury and remains open (Board Review 3).

Field work was conducted for this case, and a witness, § 87(2)(b) provided a sworn statement (Board Review 4).

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation due to § 87(2)(b)'s arrest and resulting criminal case. (Board Review 2).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- A FOIL request revealed that as of June 18, 2015, a Notice of Claim had not been filed in regard to this incident (Board Review 6).

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s ninth total CCRB complaint and seventh CCRB complaint § 87(2)(b)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- This is § 87(2)(b)'s second CCRB complaint (Board Review 8). § 87(2)(b)
[REDACTED]
[REDACTED]

- Sgt. Calhoun has 14 cases and 39 allegations (Board Review 9). In case 9700541, six allegations against him were substantiated, and charges were recommended. In case 9802616, two allegations against him were substantiated, and charges were recommended. In case 200901903, four allegations against him were substantiated, including a frisk, search, vehicle stop, and vehicle search. Charges were recommended for all four substantiated allegations, and he received command discipline for three of them, while no disciplinary action was taken for the fourth. In case 201304366, a vehicle search was substantiated, and charges were recommended. Frisks, vehicle stops, and searches of persons and vehicles have been alleged in numerous cases. Case 201501765 is pending Board Review, and none of the allegations against Sgt. Calhoun were recommended as substantiated.
- PO Seder has seven total cases and 15 allegations, none of which are substantiated (Board Review 10). Case 201407721 is pending Board Review. In that case, a frisk was alleged, and the recommendation was victim uncooperative.

Findings and Recommendations

Allegations not Pleaded

- § 87(2)(g)

Allegation A-Discourtesy: Sgt. Gary Calhoun spoke discourteously to § 87(2)(b)

It is undisputed that Sgt. Calhoun and PO Seder stopped § 87(2)(b)'s vehicle after seeing him walk out of a bodega with a beer-shaped brown bag in his hand. § 87(2)(b) stated that upon stopping him, Sgt. Calhoun approached his window and asked for his license, registration, and insurance (Board Review 11). Sgt. Calhoun "seemed like he had a problem," as if "something was eating at him, and he just wanted to get somebody." § 87(2)(b) responded, "For what?" and Sgt. Calhoun asked for his documents again. § 87(2)(b) responded, "For what?" and Sgt. Calhoun asked what he was doing inside the store and if he had been drinking. § 87(2)(b) responded, "Sir, what do you want? Do you want me to tell you what I was doing in the store, or hand you my license, registration, and insurance?" Sgt. Calhoun said he wanted both. § 87(2)(b) provided him with his documents, and pointed to the beer sitting between the cup holders on the center console. Sgt. Calhoun said, "Are you sure you did not get anything else at the store? You know what—step out of the fucking car." Later, after § 87(2)(b) exited the vehicle, he told Sgt. Calhoun that it was against the law for him to search him. Sgt. Calhoun responded, "Don't tell me what's against the fucking law; I've been doing this for twenty years."

§ 87(2)(b) corroborated § 87(2)(b)'s statement to a large extent (Board Review 12). § 87(2)(b) and § 87(2)(b) told Sgt. Calhoun that they did not want to exit the car, and Sgt. Calhoun told them to "get the fuck out of the car," and added that he had been an officer for twenty "fucking" years and that he knew the laws. § 87(2)(b) estimated that Sgt. Calhoun said "fuck" approximately three times.

§ 87(2)(b) § 87(2)(b) stated that she could not hear anything the civilians or the officers said, as she was 25 feet away from the vehicle and was inside of the pharmacy (Board Review 4). She added that she would have been able to hear them if they "had gotten really loud."

Sgt. Calhoun stated that § 87(2)(b) was compliant, and he could not recall if he had to tell him more than once to exit the vehicle (Board Review 13). Sgt. Calhoun could not recall if he

had to raise his voice to exit the vehicle. He denied telling him to “Get the fuck out of the vehicle,” or using any profanity at the scene.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Unsubstantiated**.

Allegation B – Abuse of Authority: PO Jean Seder frisked § 87(2)(b)

§ 87(2)(b) stated that after she exited the vehicle, but before she was placed in handcuffs, PO Seder patted down the outside of her pants and jacket pockets.

§ 87(2)(b) saw PO Seder pat down § 87(2)(b) after she exited the vehicle.

§ 87(2)(b) could not recall if she saw PO Seder pat down § 87(2)(b) § 87(2)(b) was mostly focused on § 87(2)(b)

PO Seder stated that as she approached the vehicle, she saw § 87(2)(b) “bend down and come back up,” and § 87(2)(b) “reach up to the visor and toward his door” (Board Review 14). They were asked to exit the vehicle because she thought they might be hiding possible weapons, and she did not want to leave them in the car within reach of these possible weapons. PO Seder acknowledged frisking § 87(2)(b) by touching her around the waist. PO Seder acknowledged that § 87(2)(b) was not under arrest when she frisked her. She frisked her because she saw her dip down into the vehicle, and her hand was “on her lap with the bag.” PO Seder thought that she might have had something tucked in her waistband behind her bag. She did not notice any bulges on § 87(2)(b) and frisked her for no other reason. She did not find any weapons.

Sgt. Calhoun stated that he “was sure PO Seder patted down § 87(2)(b) at some point,” but he never saw this, and he could not say if it was before or after § 87(2)(b) was placed under arrest.

In instances where an individual has been stopped on the basis of reasonable suspicion, a frisk of that individual is permissible only if the police officer reasonably suspects that the individual is armed and dangerous. People v. De Bour 40 N.Y. 2d 210 (1976) (Board Review 15).

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **Substantiated**.

Allegation C – Abuse of Authority: Sgt. Gary Calhoun frisked § 87(2)(b)

Allegation D- Abuse of Authority: Sgt. Gary Calhoun searched § 87(2)(b)

As § 87(2)(b) exited the car, Sgt. Calhoun directed him to the rear of the vehicle. Sgt. Calhoun patted down his pockets in the front of his hoodie and the front and back pockets of his jeans. § 87(2)(b) had only his wallet in his back left pocket, some bills in his front left jeans

pocket, and had nothing in his front hoodie pocket. When he reached the rear of the vehicle, Sgt. Calhoun reached inside his hoodie pocket and felt around his crotch area of his jeans. He also reached into his back pocket and retrieved § 87(2)(b)'s wallet.

§ 87(2)(b) stated that she saw Sgt. Calhoun pat down § 87(2)(b) and reach inside the pockets of his jacket and jeans. She did not see Sgt. Calhoun take anything out of § 87(2)(b)'s pockets. § 87(2)(b) asked Sgt. Calhoun why he was searching him.

§ 87(2)(b) stated that approximately two minutes after the officers approached the vehicle, § 87(2)(b) and § 87(2)(b) exited. They seemed to exit without any argument, and § 87(2)(b) did not see any struggling or hear any cursing. After exiting, § 87(2)(b) and § 87(2)(b) walked to the rear of the vehicle at the same time. § 87(2)(b) had a clear view of both of them. § 87(2)(b) saw Sgt. Calhoun pat down § 87(2)(b)'s pockets and all the way down his legs. She did not see him reach inside his pockets. § 87(2)(b) thought that § 87(2)(b)'s demeanor was "regular" and he was not saying anything. § 87(2)(b) noted that she was focusing on the male and did not see what happened with § 87(2)(b).

When § 87(2)(b) exited the vehicle, Sgt. Calhoun stated that he gave him a "quick pat-down" around his waistband. § 87(2)(b) was not under arrest at this point, and was only asked to exit the vehicle so that Sgt. Calhoun could determine if he was intoxicated. Sgt. Calhoun did not feel anything inside of § 87(2)(b)'s waistband. He patted down § 87(2)(b) for his safety. Nothing about § 87(2)(b) made him feel unsafe. He never suspected him of having a weapon. He could not recall if he reached inside of his pockets, and he did not have a reason to do so, because he did not feel a weapon when he frisked him.

PO Seder stated that she saw Sgt. Calhoun frisk § 87(2)(b) out of the corner of her eye. She did not see Sgt. Calhoun reach inside § 87(2)(b)'s pockets. Nothing about § 87(2)(b) made her feel unsafe and she could not recall if she saw any bulges on him. She added that she was not interacting with § 87(2)(b) as she was with § 87(2)(b).

A frisk is permissible if an officer reasonably suspects that a person is armed and dangerous. People v. De Bour 40 N.Y. 2d 210 (1976) (Board Review 15). A search is permissible if a frisk reveals an object which may be a weapon. Patrol Guide 212-11 (Board Review 16).

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **Substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **Unsubstantiated**.

Allegation E – Abuse of Authority: Sgt. Gary Calhoun searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation F – Abuse of Authority: PO Jean Seder searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that PO Seder and Sgt. Calhoun searched the vehicle. § 87(2)(b) stated that after he was asked to exit the vehicle, but before he was placed under arrest, Sgt. Calhoun leaned into the vehicle through the driver's door and searched for approximately five minutes.

§ 87(2)(b) saw him look up near the visor before PO Seder told him to face away from the vehicle. Sgt. Calhoun then came and stood with § 87(2)(b) and § 87(2)(b) at the rear of the vehicle. PO Seder leaned into the vehicle through the front passenger door. She said, “Come here, Sarge,” and showed him a straw in her hand that was approximately one inch in length. § 87(2)(b) did not know where PO Seder found the straw, and he denied knowing about the straw. § 87(2)(b) estimated that PO Seder searched the vehicle for approximately two minutes. After PO Seder showed the straw to Sgt. Calhoun, Sgt. Calhoun said, “Turn around, you’re under arrest,” and placed § 87(2)(b) in handcuffs. While PO Seder was searching the vehicle, she went inside § 87(2)(b)’s purse, which was sitting on the front seat of the car, and found § 87(2)(b)’s prescribed pills for Xanax. PO Seder asked § 87(2)(b) about the pills, and Sgt. Calhoun returned to the driver’s side of the vehicle to search. He searched for approximately 90 seconds, and during this second search, he found a second straw. § 87(2)(b) did not know where he searched because he was facing the other direction. Sgt. Calhoun said, “Cuff her too, I’m taking both of them,” and PO Seder placed § 87(2)(b) in handcuffs.

§ 87(2)(g)
§ 87(2)(b) stated that her purse was on her person, as she had taken it with her when she exited the vehicle. Secondly, § 87(2)(b) thought that only one straw was found inside the car. PO Seder asked her why some of the pills § 87(2)(b) estimated 70) were white, while the remainder § 87(2)(b) estimated 10) were yellow. § 87(2)(b) told PO Seder that they were all chemically identical to Xanax, but the pharmacy had run out of the white brand of pills, so they had given her of the yellow brand of pills. Sgt. Calhoun ordered PO Seder to place § 87(2)(b) in handcuffs after the pills were inspected. § 87(2)(b) did not know where the straw came from and did not know it was in the car.

§ 87(2)(b) stated that Sgt. Calhoun walked to the front driver’s side of the vehicle and searched “the entire seat area,” while PO Seder waited with § 87(2)(b) and § 87(2)(b). Sgt. Calhoun only searched the front driver’s seat. Next, PO Seder went to the driver’s side and searched, while Sgt. Calhoun waited with the defendants. PO Seder found something on the driver’s side. § 87(2)(b) saw that she had something in her hand, but she could not say what it was. She described it as small, white, and possibly square. It was not a pill bottle. PO Seder showed Sgt. Calhoun the object. § 87(2)(b) was already in handcuffs at this point, but § 87(2)(b) did not see an officer place § 87(2)(b) in handcuffs because she was continuing to work inside of the pharmacy while she was observing the incident. PO Seder then searched the “entire seat area” of the front passenger side. Neither officer searched in the back seat. PO Seder poured the contents of the pill bottle into her hand and looked at the pills before pouring them back into the bottle. § 87(2)(b) was then placed in handcuffs.

Sgt. Calhoun stated that he asked § 87(2)(b) to step out of the vehicle so that he could determine if he was intoxicated. When he opened the door for § 87(2)(b) to exit, he observed a small straw resting in a small depression on the handle of the driver’s door. Sgt. Calhoun stated that these straws are commonly used to snort narcotics. He did not see any residue inside of the straw when he first observed it. He brought § 87(2)(b) to the rear of the vehicle. Sgt. Calhoun thought that he gave PO Seder a “head-nod” to indicate that there was something in the car. He did not communicate this verbally to PO Seder. After § 87(2)(b) and § 87(2)(b) exited the vehicle, PO Seder entered the vehicle through the front passenger door and went to the center console. She saw a second straw in the cup holder of the center console. Sgt. Calhoun did not see this straw previously, and did not see where PO Seder was searching because he was at the rear of the vehicle. The only reason he knew PO Seder looked in the center console was because she later

told him that she saw and recovered the straw there. PO Seder was inside of the vehicle for less than one minute. PO Seder told him that she found two straws and that there was residue in the straws. She did not tell him about the residue and he did not see her inspect the straws. Sgt. Calhoun inspected the straws at the scene and also observed residue. He stated that he could not recall if he entered the car for any reason. When asked if there was any reason for him to enter the cars, he said, "I might have just looked where PO Seder found the straws." Sgt. Calhoun did not recall entering the vehicle to get a closer look. He did not recall PO Seder calling him to look at the straws. He did not recall lifting up the seat for any reason, and he never saw PO Seder do this. After the residue in the straws was observed, § 87(2)(b) and § 87(2)(b) were considered under arrest. Sgt. Calhoun clarified that the straws themselves are not illegal; the residue inside the straws is illegal.

PO Seder stated that when she looked through the front passenger window, she saw a straw that was two or three inches leaning into a cup holder on the center console. PO Seder knew from experience that these straws are often used for ingesting drugs such as heroin or cocaine. From where PO Seder was standing outside of the vehicle, which she estimated was two feet from the straw, she could not see anything inside of the straw. The straw's size was the only thing that raised her suspicion. Sgt. Calhoun pointed over his shoulder, which indicated to PO Seder that they were going to remove them from the vehicle to investigate. Sgt. Calhoun never verbally communicated anything about the straw to her. After § 87(2)(b) and § 87(2)(b) exited the vehicle, PO Seder opened the passenger door and retrieved the straw from the center console. At some point before she did this, Sgt. Calhoun had told PO Seder that he had seen another straw on the driver's door. When she went to retrieve the first straw, she saw the second straw on the armrest portion of the door, near the handle. The straw was resting flat. Besides retrieving the straws, she also searched in the lungeable/grabbable areas because she had observed § 87(2)(b) and § 87(2)(b) moving around in the vehicle before she approached. She was searching for drugs or weapons. The only reasons she entered the vehicle were to retrieve the straws and to search for other contraband. PO Seder then went to the rear of the vehicle, and Sgt. Calhoun looked at the driver's side through the open door. PO Seder did not see any part of his body enter the vehicle, but added that she was at the rear of the vehicle, and could not see clearly. PO Seder examined the straws and saw a powdery substance inside of the straws. She could not recall the color of the residue. PO Seder showed the straws to Sgt. Calhoun, and they did not discuss the straws or the residue. At that point, § 87(2)(b) and § 87(2)(b) were considered under arrest for possession of the straws and were placed in handcuffs. Sgt. Calhoun went back to the driver's side for a "second look" inside of the vehicle. PO Seder did not see Sgt. Calhoun enter the car or break the plane of the car, but reiterated that she could not see from where she was standing. PO Seder never lifted the seat, and she did not see Sgt. Calhoun do this. No weapons or other drugs were found. PO Seder searched § 87(2)(b)'s purse as incident to her arrest and observed a pill bottle that contained two types of controlled substances.

§ 87(2)(a) 160.50

Under the plain view doctrine, if the sight of an object gives the police probable cause to believe that it is involved in a crime, the object may be seized if (1) the police are lawfully in a position from which the object is viewed; (2) the police have lawful access to the object; and (3) the object's incriminating nature is immediately apparent. People v. Batista, 261 A.D.2d 218 (App. Div. 1st Dep't 1999) (Board Review 19). The incriminating nature of an object is

immediately apparent when there is probable cause to associate the object with criminal activity. Batista, at 221. Courts have recognized that "cut straws" are commonly used to sniff cocaine. People v. Sutton, 107 A.D.2d 971 (App. Div. 3rd Dep't. 1985) (Board Review 20). A vehicle may be searched without a warrant pursuant to the "automobile exception" if law enforcement officials have probable cause to believe that the vehicle contains contraband. People v. Blasich, 73 NY2d 673, 678 (Board Review 21).

§ 87(2)(g)

It is therefore recommended that **Allegations E and F** be closed as **Exonerated**.

Pod: 8

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date